

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:

Date Purchased:

-----X  
**J.L. an infant under the age of eighteen, by his parent  
and natural guardian, TRACY LIGON, and TRACY  
LIGON, Individually,**

Plaintiffs,

-against-

**SUMMONS**Plaintiffs designates  
Bronx County as the place of  
trial.

**THE CITY OF NEW YORK, POLICE OFFICER  
JUSTIN HOFF from the 48<sup>th</sup> Precinct involved in arrest  
dated March 24, 2018, POLICE OFFICER LIANG LIN  
from the 48<sup>th</sup> Precinct involved in arrest dated March 24,  
2018, LIUTENANT KURTIS ROSE from the 48<sup>th</sup>  
Precinct involved in arrest dated March 24, 2018,  
POLICE OFFICER MICHAEL SOTO (TAX ID #  
942569), SERGEANT JOHN DIAZ involved in arrest  
dated March 24, 2018 and POLICE OFFICERS JOHN  
DOES # 1-10,**

Defendants,

The basis of venue:  
Location of OccurrenceLocation of Occurrence:  
188<sup>th</sup> Street and  
Belmont Avenue*County of Bronx*-----X  
To the above-named Defendants:

**You are hereby summoned** to answer the Complaint in this action and to serve a copy of their answer on plaintiffs' attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is served by delivery to an official of the State of New York authorized to receive service on defendants' behalf); and in case of defendants' failure to appear or answer, judgment will be taken against defendants.

Dated: New York, New York  
May 31, 2019

Yours, etc.



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MOSES AHN, ESQ.  
LAW OFFICES OF MICHAEL S. LAMONSOFF,  
PLLC  
ATTORNEYS FOR PLAINTIFFS  
**J.L. an infant under the age of eighteen, by his  
parent and natural guardian, TRACY LIGON,  
and TRACY LIGON, Individually,**  
32 Old Slip, 8<sup>th</sup> Floor  
New York, New York 10005  
(212) 962-1020  
Our File No. 28547

**RIDER SHEET**

TO:

THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

POLICE OFFICER JUSTIN HOFF from the 48th Precinct  
involved in arrest dated March 24, 2018  
One Police Plaza  
New York, NY 10007

POLICE OFFICER LIANG LIN from the 48th Precinct  
involved in arrest dated March 24, 2018  
One Police Plaza  
New York, NY 10007

LIUTENANT KURTIS ROSE from the 48th Precinct  
involved in arrest dated March 24, 2018,  
One Police Plaza  
New York, NY 10007

POLICE OFFICER MICHAEL SOTO (TAX ID # 942569)  
Critical Response Command  
One Police Plaza  
New York, NY 10007

SERGEANT "JOHN" DIAZ from the 48<sup>th</sup> Precinct  
involved in arrest dated March 24, 2018  
One Police Plaza  
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
**J.L. an infant under the age of eighteen, by his parent and  
 natural guardian, TRACY LIGON, and TRACY LIGON,  
 Individually,**

Plaintiffs,

-against-

**THE CITY OF NEW YORK, POLICE OFFICER JUSTIN  
 HOFF from the 48<sup>th</sup> Precinct involved in arrest dated March  
 24, 2018, POLICE OFFICER LIANG LIN from the 48<sup>th</sup>  
 Precinct involved in arrest dated March 24, 2018,  
 LIUTENANT KURTIS ROSE from the 48<sup>th</sup> Precinct involved  
 in arrest dated March 24, 2018, POLICE OFFICER  
 MICHAEL SOTO (TAX ID # 942569), SERGEANT “JOHN”  
 DIAZ involved in arrest dated March 24, 2018 and POLICE  
 OFFICERS JOHN DOES # 1-10,**

Defendants,  
 -----X

**Index No.:  
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**VERIFIED  
 COMPLAINT**

**JURY TRIAL  
 DEMANDED**

Plaintiff, **J.L. an infant under the age of eighteen, by his parent and natural guardian,  
 TRACY LIGON, and TRACY LIGON, Individually**, by and through their attorneys, **THE  
 LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, as and for his Verified Complaint,  
 respectfully alleges, upon information and belief:

**PRELIMINARY STATEMENT**

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

**JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. This court has jurisdiction over each federal claim pursuant to concurrent jurisdiction.

### VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, County of Richmond, in that this is the county in which the claim arose

### JURY DEMAND

5. Plaintiffs respectfully demands a trial by jury of all issues in this matter.

### PARTIES

6. Plaintiffs, **J.L. an infant under the age of eighteen, by his parent and natural guardian, TRACY LIGON, and TRACY LIGON, Individually**, are, and have been, at all relevant times, a residents of the County of Bronx, City and State of New York.
7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
9. At all times hereinafter mentioned, the individually named defendants, THE CITY OF NEW YORK, POLICE OFFICER JUSTIN HOFF from the 4th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER LIANG LIN from the 48th Precinct involved in arrest dated March 24, 2018, LIUTENANT KURTIS ROSE from the 48th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER MICHAEL SOTO (TAX ID # 942569), SERGEANT "JOHN" DIAZ from the 48th Precinct involved in arrest dated March 24, 2018, and POLICE OFFICERS JOHN DOES # 1-10, were duly sworn members

of said department and were acting under the supervision of said department and according to their official duties. Each Defendant is sued herein in their official and individual capacities. At all times hereinafter mentioned, each Defendant was assigned to the 48<sup>th</sup> Precinct of the NYPD.

10. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

### **FACTS**

13. On March 24, 2018, at approximately 7:30 p.m., Plaintiff, J.L., was lawfully present at or near 188<sup>th</sup> Street and Belmont Avenue, in the County of Bronx, City and State of New York.
14. At this time, Defendants POLICE OFFICER JUSTIN HOFF from the 48th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER LIANG LIN from the 48th Precinct involved in arrest dated March 24, 2018, LIUTENANT KURTIS ROSE from the 48th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER MICHAEL SOTO (TAX ID # 942569), SERGEANT "JOHN" DIAZ from the 48th Precinct involved in arrest dated March 24, 2018, and POLICE OFFICERS JOHN DOES # 1-10, arrived at

the location on duty and in uniform.

15. Without any legal justification or excuse, the Defendants POLICE OFFICER JUSTIN HOFF from the 48th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER LIANG LIN from the 48th Precinct involved in arrest dated March 24, 2018, LIUTENANT KURTIS ROSE from the 48th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER MICHAEL SOTO (TAX ID # 942569), SERGEANT "JOHN" DIAZ from the 48th Precinct involved in arrest dated March 24, 2018, and POLICE OFFICERS JOHN DOES # 1-10, unlawfully seized, searched, and arrested Plaintiff.
16. Plaintiff J.L. was not engaged in any unlawful or suspicious activity.
17. None of the Defendants, POLICE OFFICER JUSTIN HOFF from the 48th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER LIANG LIN from the 48th Precinct involved in arrest dated March 24, 2018, LIUTENANT KURTIS ROSE from the 48th Precinct involved in arrest dated March 24, 2018, POLICE OFFICER MICHAEL SOTO (TAX ID # 942569), SERGEANT "JOHN" DIAZ from the 48th Precinct involved in arrest dated March 24, 2018, and POLICE OFFICERS JOHN DOES # 1-10, made any efforts to prevent or stop the unlawful and unconstitutional actions of any other officer against Plaintiff, despite their clear and apparent opportunities to do so.
18. Plaintiff J.L. was not engaged in any violent or threatening activity and he did not resist arrest or otherwise assault the Defendants.
19. Nonetheless, the Plaintiff J.L. was formally arrested, by Defendant, POLICE OFFICER JUSTIN HOFF from the 48<sup>th</sup> Precinct involved in arrest dated March 24, 2018, POLICE OFFICER LIANG LIN from the 48<sup>th</sup> Precinct involved in arrest dated March 24, 2018, LIUTENANT KURTIS ROSE from the 48<sup>th</sup> Precinct involved in arrest dated March 24, 2018, POLICE OFFICER MICHAEL SOTO (TAX ID # 942569), SERGEANT "JOHN"

DIAZ from the 48<sup>th</sup> Precinct involved in arrest dated March 24, 2018, and POLICE

OFFICERS JOHN DOES # 1-10, was placed in handcuffs, and was transported to the station house of a local area precinct believed to be the 48<sup>th</sup> Precinct where he was searched and detained for several hours.

20. The search yielded no evidence of any guns, drugs, or contraband.
21. At no time on March 24, 2018, did Plaintiff commit any crime or violation of law.
22. At no time on March 24, 2018, did Defendants possess probable cause to arrest Plaintiff or to order Plaintiff's arrest.
23. At no time on March 24, 2018, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
24. Plaintiff was held for several hours at the 48<sup>th</sup> Precinct due to the false allegations which each of the Defendants knew were false and/or the basis of improper identification procedures.
25. These and other allegations were false and Defendants knew they were false when they made them.
26. Pursuant to these false allegations, Plaintiff was detained for crimes he had not committed.
27. Plaintiff J.L. was eventually released from the 48<sup>th</sup> Precinct after being detained for several hours, when **TRACY LIGON** came to pick him up.
28. Each of the allegations were false and the Defendants knew them to be false when they were made.
29. As a result of the foregoing, Plaintiff **TRACY LIGON individually and as p/n/g of J.L.**, sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of his constitutional rights.
30. All of the aforementioned acts of Defendants, their agents, servants and employees, were

carried out under the color of state law.

31. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
32. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
33. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
34. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF AGAINST INDIVIDUALLY  
NAMED DEFENDANTS AND THE CITY OF NEW YORK  
FOR FALSE ARREST AND FALSE IMPRISONMENT  
UNDER STATE LAW AND FEDERAL LAW, PURSUANT  
TO 42 U.S.C. § 1983.**

35. Plaintiffs **J.L. an infant under the age of eighteen, by his parent and natural guardian, TRACY LIGON, and TRACY LIGON, Individually**, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
36. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined



without any probable cause, privilege, or consent.

37. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for her safety, and he was falsely arrested without probable cause

**SECOND CLAIM FOR RELIEF AGAINST INDIVIDUALLY NAMED DEFENDANTS**  
**(42 U.S.C. § 1983: FAILURE TO INTERVENE)**

38. Plaintiffs, **J.L. an infant under the age of eighteen, by his parent and natural guardian, TRACY LIGON, and TRACY LIGON, Individually**, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
39. That defendants' failure to intervene to prevent and/or stop the improper and unconstitutional conduct of their fellow officers entitles plaintiff to recover monetary damages from these defendants under 42 U.S.C. § 1983

**THIRD CLAIM FOR RELIEF**  
**FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

40. Plaintiffs, **J.L. an infant under the age of eighteen, by his parent and natural guardian, TRACY LIGON, and TRACY LIGON, Individually**, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
41. Defendants arrested, searched, and detained plaintiff, J.L., in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate her constitutional rights.
42. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

43. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
44. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
  - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
  - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
  - iv. failing to properly train police officers in the requirements of the United States Constitution.
45. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
  - ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
  - iii. falsifying evidence and testimony to support those arrests;
  - iv. falsifying evidence and testimony to cover up police misconduct.
46. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, J.L.
47. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate

cause of the constitutional violations suffered by Plaintiff as alleged herein.

48. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
49. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
50. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.
51. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.
52. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

**WHEREFORE**, the Plaintiff respectfully requests judgment against Defendants on each

of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York  
May 31, 2019



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MOSES AHN, ESQ.  
LAW OFFICES OF MICHAEL S. LAMONSOFF,  
PLLC

Attorneys for Plaintiffs

**J.L. an infant under the age of eighteen, by his parent  
and natural guardian, TRACY LIGON, and TRACY  
LIGON, Individually**

Financial Square at 32 Old Slip - 8th FL  
New York, New York 10005  
(212) 962-1020

**VERIFICATION**

**MOSES AHN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiff, **J.L. an infant under the age of eighteen, by his parent and natural guardian, TRACY LIGON, and TRACY LIGON, Individually**, in the action within. I have read the annexed

**SUMMONS AND VERIFIED COMPLAINT**

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York  
May 31, 2019



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MOSES AHN, ESQ.  
LAW OFFICES OF MICHAEL S. LAMONSOFF,  
PLLC  
Attorneys for Plaintiff  
**J.L. an infant under the age of eighteen, by his  
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and TRACY LIGON, Individually**  
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